

23PSCV01495 23PSCV01495

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Interinsurance Exchange of the
Automobile Club v. Gebrosky, Case
No. 23PSCV01495

ORDER ON PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Plaintiff's motion to enforce settlement is
GRANTED.

Background

Plaintiff

Interinsurance Exchange of The Automobile Club ("Plaintiff") alleges as follows:

On October 2, 2021, Plaintiff's insured Doris Galeano aka Doris Murillo was involved in a motor vehicle collision accident with Wesley Eric Gebrosky ("Defendant"). Plaintiff made a payment of \$44,308.28 to Galeano.

On May 18, 2023, Plaintiff filed a complaint for subrogation recovery in amount of \$44,308.28 against Defendant and DOES 1-10.

The

parties filed a Stipulation for Entry of Judgement and Installment Payment (the "Stipulation"), and the Court subsequently entered an Order for Court to Retain

Jurisdiction and Enter Dismissal.

On July

8, 2026, Plaintiff asks this Court to enforce settlement pursuant to Code of Civil Procedure Section 664.6 and 187.

Legal

Standard

“When

jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.” (Code Civ. Proc. § 187.)

“Code

of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.” (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182.)

“[I]f the parties to pending litigation enter into a settlement either in writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement.” (Id.)

“The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal.” (Id.) “Such a request must be made either in writing signed by the parties or orally before the court.” (Id.)

“A

court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (Id.)

“A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms.” (Id.) “The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to.” (Id.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (Id.)

Code Civ. Proc. § 664.6 “expressly provides for the court to enter judgment

pursuant to the terms of the settlement.” (Id. at p. 1183.) “It is widely recognized that the courts are not at liberty to revise an agreement under the guise of construing it.” (Series AGI West Linn of Appian Group Investors DE, LLC v. Eves (2013) 217 Cal.App.4th 156, 164 (Series AGI West).)¿

Discussion

Plaintiff asks the Court to enter judgment in the amount of \$58,654.87 due to Defendant’s default and asserts entitlement to this amount pursuant to paragraphs 1, 5, 6, 7, and of the Stipulation. (Tapper Dec., Exhibit A.)

Pursuant to the aforementioned legal authority and the Stipulation signed by Plaintiff and Defendant Gebrosky, the motion is granted. Plaintiff has demonstrated that Plaintiff and Defendant Gebrosky entered into a valid and binding settlement agreement; that Defendant Gebrosky breached the settlement agreement; and that the Court has authority to enforce that agreement.

The Court additionally grants Plaintiff’s request for \$435 in costs as the Stipulation makes clear that, upon the failure of Defendant to make the installment payments hereinabove, Plaintiff may seek for costs for incurred by Plaintiff. (Tapper Decl., Exh. A at ¶ 5.)

Conclusion

The motion is granted. The Court will enter judgment in favor of Plaintiff and against Defendant in the sum of \$58,654.87, which represents \$44,308.28 in unpaid principal, \$13,911.59 in interest, and \$425 in costs.